EXHIBIT 1

BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

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County of Alameda
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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

AMAZON.COM SERVICES, LLC, a Delaware limited liability company; ACCURATE BACKGROUND LLC, a California limited liability company; and DOES 1-10, inclusive,

Defendants.

Case No. 26CV201554

COMPLAINT FOR DAMAGES

(1) Viol. of Penal Code §290.46(j);
(2) Viol. of Fair Chance Act, Gov. Code §12952;
(3) Viol. of FCRA, 15 U.S.C. §1681;
(4) Viol. of ICRAA, Civ. Code §1786;
(5) Invasion of Privacy, Cal. Const. Art. I, §1;
(6) Viol. of Bus. & Prof. Code §17200;
(7) Intentional Infliction of Emotional Distress

[Unlimited Civil]
[Jury Trial Demanded]

COMPLAINT FOR DAMAGES

Plaintiff BRENDAN NGEHSI NEWANFORBI, appearing in pro per, alleges as follows:

PARTIES

1. Plaintiff BRENDAN NGEHSI NEWANFORBI ("Plaintiff") is, and at all times relevant herein was, an individual residing in the County of San Joaquin, State of California.

2. Defendant AMAZON.COM SERVICES, LLC ("Amazon") is, and at all times relevant herein was, a Delaware limited liability company authorized to do business in the State of California. Amazon operates a fulfillment center located at 44051 Osgood Road, Fremont, California 94539, in the County of Alameda. Amazon extended to Plaintiff a conditional offer of employment for a Seasonal XL Warehouse Associate position at that facility and is the entity that procured a consumer report on Plaintiff for employment purposes.

3. Defendant ACCURATE BACKGROUND LLC ("Accurate Background") is, and at all times relevant herein was, a California limited liability company headquartered in Irvine, California. Accurate Background is a consumer reporting agency within the meaning of the Fair Credit Reporting Act, 15 U.S.C. section 1681a(f), and the Investigative Consumer Reporting Agencies Act, Civil Code section 1786.2(d). Accurate Background was retained by Amazon -- referred to by Accurate Background itself as "Amazon Salesforce" -- to conduct background screening on applicants for employment, including Plaintiff. In its own communications to Plaintiff, Accurate Background identified itself as "a consumer reporting agency" that was "requesting background check on behalf of Amazon." Accurate Background communicates with applicants via SMS shortcode 45996 and by email from the addresses noreply@accurate.com and infoneeded@accurate.com.

4. The true names and capacities, whether individual, corporate, associate, or otherwise, of DOES 1 through 10, inclusive, are unknown to Plaintiff at this time. Plaintiff will amend this Complaint to allege their true names and capacities when ascertained. Each DOE Defendant is responsible in some manner for the acts, omissions, and damages alleged herein.

JURISDICTION AND VENUE

5. This Court has jurisdiction over this action pursuant to Article VI, Section 10 of the California Constitution and Code of Civil Procedure section 410.10. The amount in controversy

exceeds the jurisdictional minimum of this Court. This action is classified as an unlimited civil case.

6. Venue is proper in this Court pursuant to Code of Civil Procedure sections 395(a) and 395.5 because the employment opportunity at issue existed at Amazon's fulfillment center located at 44051 Osgood Road, Fremont, California, in the County of Alameda, and because a substantial part of the events and omissions giving rise to this action occurred in the County of Alameda, including the pre-hire appointment, the processing of the background check, and the loss of the specific employment position.

FACTUAL ALLEGATIONS

A. The Application and Conditional Offer

7. Plaintiff applied through Amazon's hiring portal at hiring.amazon.com for a position as a Seasonal XL Warehouse Associate at Amazon's fulfillment center located at 44051 Osgood Road, Fremont, California 94539 (Alameda County). The offered terms included a pay rate of $21.50 per hour (the offer letter later stated a range of $21.50 to $24.00 per hour), approximately 19 hours per week, on a seasonal basis, with a possible start date of July 28, 2026.

8. On July 3, 2026, at 2:09 PM, Amazon emailed Plaintiff a conditional offer of employment, with the subject line "Congratulations on Your Amazon Offer!" The email stated, in pertinent part: "This offer is confirmation that you will be hired* as an employee of Amazon and depends on the successful completion of your background check, drug test, and all pre-hire activities."

9. The same offer email further stated: "We will require you to select a new start date, location or schedule, which could potentially impact your pay details if: Your pre-employment

requirements are not completed on time. There is missing or incomplete information on your background check. There are no longer any training spots available for your first day. But don't worry if this happens! We will reach out to you via email with any information requests or notify you of any changes."

10. The conditional offer fixed training dates of July 28-29 and August 4-5, 2026, at Amazon's Fremont fulfillment center.

B. Pre-Hire Onboarding

11. On July 3, 2026, at 2:20 PM, Amazon confirmed Plaintiff's Pre-Hire Appointment for July 7, 2026, at 9:00 AM, at the Fremont facility. Confirmation was sent by both email and SMS (shortcode 39816).

12. On July 4, 2026, Equifax sent Plaintiff an onboarding-packet reminder relating to onboarding paperwork, separate from the background check. That evening, Plaintiff completed Form I-9 online. The system audit log records the session at 2026-07-05T03:07 through 03:12 UTC. Plaintiff's Section 1 attestation stated: "An alien authorized to work," with a USCIS/A-Number on file and an employment authorization expiration date of May 12, 2027.

13. On July 6, 2026, at 9:37 AM, Amazon sent Plaintiff an SMS (shortcode 31432) explaining a four-day paid training requirement. At 10:22 AM, Amazon Workforce Staffing sent Plaintiff an application-experience survey email. At 2:53 PM, Amazon sent a second pre-hire appointment reminder.

14. On July 7, 2026, Plaintiff attended the Pre-Hire Appointment at the Fremont facility from approximately 9:00 AM to 9:30 AM. At 9:20 AM, Amazon emailed Plaintiff a "Completed Pre-Hire Appointment" confirmation. Amazon's Simple Hire checklist at that time showed: Drug

Test -- COMPLETE; I-9 Verification -- COMPLETE; Background Check -- PENDING.

C. The Background Check and Accurate Background's Conduct

15. On July 7, 2026, at approximately 9:22 AM -- within moments of the completion of Plaintiff's Pre-Hire Appointment -- three things occurred in the same narrow time window:

a. Accurate Background sent Plaintiff an SMS from shortcode 45996 stating: "Reply START to receive text messages from Accurate Background (requesting background check on behalf of Amazon)."

b. Accurate Background emailed Plaintiff a "Notification of Electronic Communication," which stated: "The purpose of this notice is to inform you that in connection with your screening request by the company listed below, Accurate Background, a consumer reporting agency, was asked to complete screening(s) about you." The email identified the requesting company as "Amazon Salesforce" at "PO BOX 81226, Seattle, WA 98108."

c. In a separate email sent at the same time (subject: "Other Information Needed for Screening Request - ID# 496623722"), Accurate Background stated: "Accurate Background is in the process of conducting your screening. To proceed, please contact us by phone and kindly confirm/provide the following: Social security number, Provided name(s), Address history, Date of birth. Please treat this as an urgent matter... Failure to respond in a timely manner will result in delays in processing your screening."

16. The communications described in Paragraph 15 establish by Accurate Background's own words that: (a) Accurate Background is a "consumer reporting agency"; (b) Accurate Background was acting on behalf of Amazon (which it internally designates "Amazon

Salesforce"); and (c) Accurate Background was preparing a consumer report on Plaintiff for employment purposes. These are not conclusory allegations on information and belief; they are Accurate Background's own self-identification in its own contemporaneous communications to Plaintiff.

D. The Delay Pattern

17. On July 8, 2026, Amazon sent Plaintiff an SMS (shortcode 31432) stating: "Just an update on your background check. At the site you applied to, background checks are usually returned 5 days after they are submitted."

18. On July 12, 2026, at 5:00 AM, Amazon emailed Plaintiff: "Your application with Amazon is still in progress. The time to complete the background check and testing can vary, so we thank you for your patience."

19. On July 17, 2026, at 5:15 AM, Amazon emailed Plaintiff: "We are still waiting for your background check results and sincerely apologize for the delay. These background checks are processed through a third-party vendor, so we will notify you via email as soon as your results are provided to us."

20. At 7:54 AM on July 17, 2026 -- ten days after Accurate Background's initial July 7 consent request -- Plaintiff replied "START" to Accurate Background's SMS, consenting to text message communications. Plaintiff's response was not contemporaneous with the initial request.

21. On July 27, 2026, at 3:23 PM, Plaintiff accessed Amazon's Simple Hire checklist. The checklist showed that the background check was still "Pending" -- twenty days after submission, approximately four times Amazon's own stated five-day norm, with only one of six onboarding activities marked complete.

22. The same July 27 checklist no longer showed Plaintiff's confirmed training shift. Instead, it read: "You do not have a shift selected. Please select a new shift." This was captured one day before the July 28 training and start date that Amazon's own July 3 conditional offer had fixed. The specific, dated employment position that Amazon had offered to Plaintiff had been silently vacated.

23. As of the date of this Complaint, no formal adverse-action notice of any kind has issued. No pre-adverse-action notice under the Fair Credit Reporting Act or the Investigative Consumer Reporting Agencies Act has been provided to Plaintiff. No copy of the consumer report has been furnished. No opportunity to dispute or explain the contents of the report has been afforded. The background check remains in a perpetual "Pending" status while the offered employment has been effectively withdrawn.

24. The July 3 offer email's own language -- quoted in Paragraph 9, above -- expressly contemplated this precise outcome. It stated that Plaintiff would be required to "select a new start date, location or schedule" if, among other things, the pre-employment requirements were "not completed on time" or there were "no longer any training spots available for your first day." Amazon framed this potential loss as a routine scheduling matter ("But don't worry if this happens!") rather than as a denial, rejection, or adverse action requiring formal notice. The mechanism described in the offer email is exactly the mechanism that then operated: the background check was not completed on time, and the confirmed training shift was vacated, one day before the start date.

25. The practical effect of these events is that Plaintiff has lost the specific employment position for which he received a conditional offer. An adverse action has occurred in substance -- the specific job has been lost -- whether or not Amazon characterizes it as a formal denial and whether or not Amazon issues a formal adverse-action notice.

E. The Registry Prohibition

26. Plaintiff is a registrant on California's Sex Offender Registry pursuant to Penal Code section 290.

27. California Penal Code section 290.46, subdivision (j)(2), provides, in pertinent part, that information disclosed on the Department of Justice's Internet Web site regarding a person required to register as a sex offender "shall not be used" to, among other things, "[d]eny . . . employment" (subd. (j)(2)(E)). This prohibition applies to "[a]ny person" who uses such information for the enumerated prohibited purposes, including employers and their agents.

28. On information and belief, and in the alternative, the extended delay in processing Plaintiff's background check, the contemporaneous out-of-band identity-reverification demand from Accurate Background, and the ultimate constructive denial of employment are attributable in whole or in part to Plaintiff's status as a registrant on California's Sex Offender Registry, as identified through one or more of the following means: (a) Accurate Background's own "Sex Offender Registry Search" product, which Accurate Background advertises and offers as a standard component of its criminal background screening services; (b) a "National Sex Offender Database Search," which aggregates data from state sex-offender registries including the California Megan's Law website operated by the Department of Justice; (c) direct reference to the California Megan's Law website at meganslaw.ca.gov; or (d) some combination of these or other means by which registry-derived information entered Accurate Background's screening process and was communicated to Amazon.

29. Plaintiff does not, as of the date of this Complaint, possess Accurate Background's actual background-check report. Plaintiff has demanded but not yet received a copy of the consumer report prepared about him. Plaintiff therefore cannot identify with certainty the precise

mechanism by which his registry status entered Accurate Background's screening process. Plaintiff expressly reserves the right to amend this Complaint to allege the specific mechanism once the actual report is obtained, whether through Plaintiff's rights under 15 U.S.C. section 1681g, Civil Code section 1786.10, or through formal discovery.

30. Regardless of the specific mechanism, the pattern is consistent with the experiences of other applicants screened by consumer reporting agencies in Plaintiff's portfolio of related matters. In three separate matters involving three independent consumer reporting agencies -- Checkr, HireRight, and InfoMart -- the actual background-check reports obtained by Plaintiff showed the same result: all criminal-court record searches returned clear, and the sole flagged item was Plaintiff's status on the California Sex Offender Registry.

F. Prior Notice -- Lerma v. Amazon

31. Amazon and Accurate Background were both defendants in the prior action Miguel Lerma, Jr. v. Amazon.com Services, LLC et al., No. 8:22-cv-01727-FWS-JDE (C.D. Cal.) ("Lerma"). Lerma, also a registrant on California's Sex Offender Registry, alleged that his conditional offer of employment with Amazon was revoked after Accurate Background ran a background check that surfaced a 2013 felony conviction.

32. In Lerma, the complaint alleged that the disqualifying information was obtained from the California Megan's Law website. On May 26, 2023, the court granted both defendants' motions to dismiss the Megan's Law claim (Penal Code section 290.46) and a derivative Fair Credit Reporting Act claim, without prejudice. The court's reasoning was that Accurate Background's own background report -- properly before the court on judicial notice -- showed that the disqualifying conviction was identified through an ordinary Orange County criminal-court record search, not from the Megan's Law website. The report's own "National Sex Offender Database Search" line item returned "NO RECORD FOUND." The court held it need

not accept the plaintiff's registry-sourcing theory where the report itself contradicted it.

33. The Lerma plaintiff's separate Investigative Consumer Reporting Agencies Act claim against Accurate Background had been voluntarily dismissed after a seven-year-lookback defense was raised. The Lerma plaintiff's Unfair Competition Law claim failed for lack of federal equitable standing under Sonner v. Premier Nutrition Corp., 971 F.3d 834 (9th Cir. 2020) -- a federal-court-specific doctrine inapplicable in this state-court action.

34. The only cause of action in Lerma that survived either defendant's motion to dismiss was a California Fair Chance Act claim (Government Code section 12952) against Amazon alone. That claim was based on Amazon's failure to conduct an individualized assessment of the plaintiff's conviction history against the specific duties of the job before denying employment, despite having previously employed and praised him. Amazon answered that surviving claim on August 23, 2023. The case settled on September 21, 2023, and was terminated on September 29, 2023. Settlement terms were not publicly disclosed.

35. To be clear: Plaintiff does not allege that Amazon "settled the identical Megan's Law/registry claim" in Lerma. That would be false. The registry claim was dismissed, not settled. What Plaintiff does allege is the following: Amazon and Accurate Background have litigated this exact fact pattern before -- a registered sex offender receiving a conditional offer of employment, undergoing a background check conducted by Accurate Background, and having that offer effectively revoked. And in that litigation, Amazon specifically settled a Fair Chance Act claim premised on the absence of an individualized assessment. Amazon therefore had actual notice, no later than September 2023, that its hiring process was required to include an individualized assessment under Government Code section 12952 and that the absence of such an assessment was a cognizable legal violation for which it had already paid to resolve.

36. Plaintiff's experience in 2026 demonstrates the same gap. Amazon's Simple Hire

onboarding process, as experienced by Plaintiff, contains no individualized-assessment step of any kind. There is no point in the process at which Amazon evaluates the nature and gravity of an offense, the time elapsed since the offense and completion of sentence, or the relationship of the offense to the specific duties of the job, as required by Government Code section 12952(c)(1). The process moves directly from "Background Check — Pending" to the silent removal of the confirmed training shift.

G. Damages

37. As a direct and proximate result of the conduct described herein, Plaintiff has suffered and continues to suffer damages including, but not limited to: loss of the specific employment opportunity and its associated wages and benefits; lost earning capacity; emotional distress, humiliation, embarrassment, anxiety, and mental anguish arising from the protracted uncertainty, the indignity of having a confirmed employment position silently withdrawn, and the stigmatizing use of registry-derived information for employment purposes in violation of California law; and other consequential damages, in amounts to be proven at trial.

38. Defendants' conduct was willful, knowing, and in reckless disregard of Plaintiff's rights. Amazon had actual notice of its obligations under the Fair Chance Act and the Penal Code section 290.46 prohibitions by virtue of the Lerma litigation, in which it was represented by counsel from Morgan, Lewis & Bockius LLP and in which these precise statutory obligations were briefed and adjudicated. Accurate Background had actual notice of its obligations as a consumer reporting agency under the FCRA and ICRAA, having been represented by counsel from Troutman Pepper Hamilton Sanders LLP in the same litigation. Despite this notice, Defendants engaged in the same pattern of conduct with respect to Plaintiff.

FIRST CAUSE OF ACTION

Violation of Penal Code Section 290.46, Subdivision (j)(2)(E)

(Against All Defendants)

39. Plaintiff incorporates by reference Paragraphs 1 through 38 as though fully set forth herein.

40. California Penal Code section 290.46 requires the Department of Justice to maintain an Internet Web site disclosing specified information about persons required to register as sex offenders under Penal Code section 290.

41. Penal Code section 290.46, subdivision (j)(2), provides that the information disclosed on that website shall not be used by any person to commit a crime against any registrant or to engage in illegal discrimination or harassment against any registrant. Subdivision (j)(2)(E) expressly prohibits the use of such information to "[d]eny" any registrant "employment."

42. Plaintiff is a registrant under Penal Code section 290 and is subject to information disclosure on the Department of Justice's Internet Web site maintained pursuant to section 290.46.

43. On information and belief, and in the alternative as alleged in Paragraphs 28 and 29, Defendants, or one or more of them, used information disclosed on the Megan's Law website or derived from the Sex Offender Registry -- whether identified through Accurate Background's own Sex Offender Registry Search product, through the National Sex Offender Database (which aggregates state registry data including data from the California Megan's Law website), through direct reference to the Megan's Law website, or through some combination of these or other sources -- to deny Plaintiff employment by effectively revoking his conditional offer of employment through the mechanism described in Paragraphs 21 through 25.

44. Accurate Background acted as the agent of Amazon in conducting the background

check, as established by Accurate Background's own contemporaneous communications quoted in Paragraph 15. Accurate Background's "Notification of Electronic Communication" identified itself as "a consumer reporting agency" that was asked to "complete screening(s)" on behalf of "Amazon Salesforce." Accurate Background's SMS consent request stated it was "requesting background check on behalf of Amazon." As Amazon's agent, Accurate Background is jointly liable for the use of registry-derived information to deny Plaintiff employment.

45. Plaintiff expressly reserves the right to amend these allegations to identify the specific source(s) through which registry-derived information entered Accurate Background's screening process once the actual background-check report is obtained through Plaintiff's statutory rights under 15 U.S.C. section 1681g, Civil Code section 1786.10, or through discovery.

46. As a direct and proximate result of Defendants' violation of Penal Code section 290.46, subdivision (j)(2)(E), Plaintiff has suffered actual damages as alleged herein. Plaintiff is entitled to recover, pursuant to Penal Code section 290.46, subdivision (j)(4)(A): "actual damages, and any amount that may be determined by a jury or a court sitting without a jury, not exceeding three times the amount of actual damage, and not less than two hundred fifty dollars ($250), and attorney's fees, exemplary damages, or a civil penalty not exceeding twenty-five thousand dollars ($25,000)."

SECOND CAUSE OF ACTION

Violation of the California Fair Chance Act,
Government Code Section 12952
(Against Defendant Amazon)

47. Plaintiff incorporates by reference Paragraphs 1 through 38 as though fully set forth herein.

48. Government Code section 12952 (the California Fair Chance Act) provides, in pertinent part, that an employer that intends to deny an applicant a position of employment solely or in part because of the applicant's conviction history shall make an individualized assessment of whether the applicant's conviction history has a direct and adverse relationship with the specific duties of the job that justify denying the applicant the position. In making that assessment, the employer must consider: (i) the nature and gravity of the offense or conduct; (ii) the time that has passed since the offense or conduct and completion of the sentence; and (iii) the nature of the job held or sought.

49. Amazon is an employer within the meaning of Government Code section 12952. Amazon extended Plaintiff a conditional offer of employment for a Seasonal XL Warehouse Associate position at its Fremont fulfillment center.

50. Amazon's Simple Hire onboarding process, as experienced by Plaintiff, contains no individualized-assessment step. At no point did Amazon evaluate the nature and gravity of any offense, the time that had elapsed since any offense or completion of sentence, or the nature of the Seasonal XL Warehouse Associate job in relation to any conviction. The process moved from "Background Check -- Pending" directly to the silent removal of Plaintiff's confirmed training shift, without any intervening assessment, notice, or opportunity to respond.

51. Amazon had actual notice of this statutory obligation. In Lerma, the sole surviving cause of action was a Fair Chance Act claim premised on the identical deficiency -- Amazon's failure to conduct an individualized assessment before denying employment to an applicant based on conviction history. Amazon settled that claim in September 2023. Despite this notice, and despite having litigated and paid to resolve the absence of an individualized-assessment process, Amazon's onboarding system as experienced by Plaintiff in 2026 still contains no such process.

52. Government Code section 12952(c)(2) further requires that before taking adverse action based on conviction history, an employer must notify the applicant in writing of the disqualifying conviction or convictions forming the basis for the preliminary decision, provide a copy of any conviction history report used, and provide the applicant an opportunity to respond. Amazon has done none of these things with respect to Plaintiff.

53. As a direct and proximate result of Amazon's violation of Government Code section 12952, Plaintiff has suffered and continues to suffer damages as alleged herein, including lost wages, lost employment benefits, lost earning capacity, and emotional distress, humiliation, embarrassment, anxiety, and mental anguish, in amounts to be proven at trial.

THIRD CAUSE OF ACTION

Violation of the Fair Credit Reporting Act,
15 U.S.C. Section 1681 et seq.
(Against All Defendants)

54. Plaintiff incorporates by reference Paragraphs 1 through 38 as though fully set forth herein.

55. Accurate Background is a "consumer reporting agency" as defined by 15 U.S.C. section 1681a(f). Accurate Background's own communications confirm this status: its July 7, 2026 "Notification of Electronic Communication" to Plaintiff identified itself as "a consumer reporting agency."

56. Plaintiff is a "consumer" as defined by 15 U.S.C. section 1681a(c), and the background screening conducted by Accurate Background constitutes a "consumer report" as defined by 15 U.S.C. section 1681a(d), in that it bears on Plaintiff's character, general reputation,

personal characteristics, or mode of living and was used or expected to be used or collected in whole or in part for the purpose of serving as a factor in establishing the consumer's eligibility for employment.

57. Amazon is a "user" of consumer reports within the meaning of the FCRA, having procured a consumer report on Plaintiff from Accurate Background for employment purposes.

58. The FCRA, at 15 U.S.C. section 1681b(b)(3), requires that in using a consumer report for employment purposes, before taking any adverse action based in whole or in part on the report, the person intending to take such adverse action shall provide to the consumer: (a) a copy of the report; and (b) a description in writing of the rights of the consumer under the FCRA, as prescribed by the Bureau by regulation. These requirements apply independently and are not derivative of any other claim in this Complaint.

59. Amazon has taken an adverse action against Plaintiff within the meaning of 15 U.S.C. section 1681a(k)(1)(B)(ii), which defines "adverse action" to include a denial of employment or any other decision for employment purposes that adversely affects any current or prospective employee. As alleged in Paragraphs 21 through 25, the specific, dated employment position for which Plaintiff received a conditional offer has been vacated while the background check remains in a perpetual "Pending" status. This constitutes an adverse action in substance, regardless of whether Amazon characterizes it as a formal denial.

60. Amazon failed to provide Plaintiff with a copy of the consumer report before taking this adverse action, as required by 15 U.S.C. section 1681b(b)(3)(A)(i). Amazon failed to provide Plaintiff with a written description of the consumer's rights under the FCRA before taking this adverse action, as required by 15 U.S.C. section 1681b(b)(3)(A)(ii). Amazon failed to provide Plaintiff with written notice of the adverse action and the information specified in 15 U.S.C. section 1681m(a).

61. Separately, under 15 U.S.C. section 1681b(b)(1), a consumer reporting agency shall not furnish a consumer report for employment purposes with respect to any consumer unless the agency has received certification from the person requesting the report that the user will comply with applicable federal and state law. On information and belief, Accurate Background furnished the consumer report on Plaintiff without ensuring Amazon's compliance with the pre-adverse-action notice requirements of 15 U.S.C. section 1681b(b)(3) and without ensuring Amazon's compliance with applicable state law, including Penal Code section 290.46(j)(2).

62. Defendants' violations of the FCRA were willful within the meaning of 15 U.S.C. section 1681n. Both Defendants were represented by counsel and litigated these exact FCRA obligations in the Lerma action. Both Defendants had actual notice of the pre-adverse-action requirements under the FCRA. Despite this notice, both Defendants failed to provide Plaintiff with any of the notices or rights required by the FCRA.

63. As a direct and proximate result of Defendants' willful violations of the FCRA, Plaintiff is entitled to recover statutory damages of not less than $100 and not more than $1,000 per violation pursuant to 15 U.S.C. section 1681n(a)(1)(A), or actual damages pursuant to 15 U.S.C. section 1681n(a)(1)(A), whichever is greater; punitive damages as the court may allow pursuant to 15 U.S.C. section 1681n(a)(2); and reasonable attorney's fees pursuant to 15 U.S.C. section 1681n(a)(3). In the alternative, if the violations are found to be negligent, Plaintiff is entitled to recover actual damages pursuant to 15 U.S.C. section 1681o(a)(1) and reasonable attorney's fees pursuant to 15 U.S.C. section 1681o(a)(2).

FOURTH CAUSE OF ACTION

Violation of the Investigative Consumer Reporting Agencies Act,

Civil Code Section 1786 et seq.

(Primarily Against Defendant Accurate Background)

64. Plaintiff incorporates by reference Paragraphs 1 through 38 as though fully set forth herein.

65. Accurate Background is an "investigative consumer reporting agency" within the meaning of Civil Code section 1786.2(d). The background screening conducted by Accurate Background constitutes an "investigative consumer report" within the meaning of Civil Code section 1786.2(c), in that it was a communication bearing on Plaintiff's character, general reputation, personal characteristics, or mode of living that was obtained through personal interviews or investigation.

66. Amazon is a person that has caused an investigative consumer report to be prepared on Plaintiff, within the meaning of Civil Code section 1786.16.

67. Civil Code section 1786.16, subdivision (a)(2), requires that whenever an investigative consumer report is sought for employment purposes, the person seeking the report shall, not later than three days after the date on which the report was first requested, notify the consumer in writing that an investigative consumer report will be made regarding the consumer's character, general reputation, personal characteristics, and mode of living, and shall include the name and address of the investigative consumer reporting agency conducting the investigation.

68. Civil Code section 1786.40 provides that an employer shall not take adverse action against a consumer based in whole or in part on information in an investigative consumer report unless the employer provides the consumer with a copy of the report and a summary of the consumer's rights under the ICRAA.

69. Amazon has taken an adverse action against Plaintiff, as described in Paragraphs 21

through 25, based in whole or in part on the investigative consumer report prepared by Accurate Background, without providing Plaintiff a copy of the report or a summary of Plaintiff's rights under the ICRAA. Accurate Background prepared and furnished the report without ensuring that the user complied with the notification and disclosure requirements of the ICRAA.

70. As a direct and proximate result of the violations of the ICRAA, Plaintiff has suffered and continues to suffer actual damages as alleged herein. Plaintiff is entitled to recover actual damages, or statutory damages in the amount of ten thousand dollars ($10,000) if the violation is found to be knowing, whichever is greater, pursuant to Civil Code section 1786.50(a). Plaintiff is further entitled to recover, if the violation is found to be willful, punitive damages, as well as costs and reasonable attorney's fees, as provided by Civil Code section 1786.50(a) and (b).

FIFTH CAUSE OF ACTION

Invasion of Privacy
California Constitution, Article I, Section 1
(Against All Defendants)

71. Plaintiff incorporates by reference Paragraphs 1 through 38 as though fully set forth herein.

72. Article I, Section 1 of the California Constitution provides that all people have the inalienable right to pursue and obtain privacy. This constitutional right of privacy creates a private right of action against private parties whose conduct seriously invades the privacy interests of others.

73. Plaintiff has a legally protected privacy interest in the information maintained on the Sex Offender Registry and the Megan's Law website, at least insofar as that information is used

for purposes expressly prohibited by Penal Code section 290.46(j)(2). The Legislature's enactment of specific prohibitions on the use of that information reflects a policy determination that the privacy interest in freedom from employment discrimination based on registry status outweighs any countervailing interest in unrestricted employer access.

74. Plaintiff had a reasonable expectation of privacy in this information, including a reasonable expectation that it would not be gathered, disseminated, and used for the express purpose of denying him employment, in direct contravention of the statutory protections enacted by the Legislature.

75. Defendants' conduct constituted a serious invasion of Plaintiff's privacy. In the alternative as alleged in Paragraphs 28 and 29, Defendants obtained, gathered, and/or used Plaintiff's registry status information in connection with an employment decision -- a use expressly prohibited by Penal Code section 290.46(j)(2)(E). The invasion is serious because it resulted in the denial of employment and is of a kind the Legislature specifically sought to prevent.

76. As a direct and proximate result of this invasion of privacy, Plaintiff has suffered and continues to suffer damages including emotional distress, humiliation, embarrassment, anxiety, and mental anguish, in amounts to be proven at trial.

SIXTH CAUSE OF ACTION

Unfair, Unlawful, and Fraudulent Business Practices
Business and Professions Code Section 17200 et seq.
(Against All Defendants)

77. Plaintiff incorporates by reference Paragraphs 1 through 38 as though fully set forth

herein.

78. Business and Professions Code section 17200 defines unfair competition to include "any unlawful, unfair or fraudulent business act or practice." The UCL is to be construed broadly, and each of its three prongs provides an independent basis for a cause of action.

Unlawful Prong

79. Defendants' conduct constitutes an unlawful business practice under Business and Professions Code section 17200 in that it violates: (a) Penal Code section 290.46, subdivision (j)(2)(E), as alleged in the First Cause of Action; (b) the Fair Credit Reporting Act, 15 U.S.C. section 1681 et seq., as alleged in the Third Cause of Action; and (c) the Investigative Consumer Reporting Agencies Act, Civil Code section 1786 et seq., as alleged in the Fourth Cause of Action. Each of these statutory violations independently constitutes an "unlawful" business practice under the UCL.

Unfair Prong

80. Independently of the unlawful prong, Defendants' conduct constitutes an "unfair" business practice under Business and Professions Code section 17200. Amazon's hiring process, as documented in Plaintiff's experience, is structured to allow a conditional offer of employment to quietly lapse without ever generating a document that could be construed as a denial or adverse action.

81. Specifically, Amazon's own July 3, 2026 offer email expressly contemplated that if the background check was not completed on time, Plaintiff would be required to "select a new start date, location or schedule" and that training spots might no longer be available -- framed as a routine scheduling matter ("But don't worry if this happens!") rather than as an adverse action.

This language pre-authorized the exact outcome that subsequently occurred: the confirmed training shift was silently vacated while the background check remained in a perpetual "Pending" status, and no pre-adverse-action notice, adverse-action notice, copy of the report, or opportunity to respond was ever provided.

82. The unfairness of this practice is that it is designed to achieve the functional equivalent of a denial of employment while avoiding the notice-and-response framework that the FCRA, the ICRAA, and the Fair Chance Act require before an employer may take adverse action based on a consumer report or conviction history. The practice causes substantial injury to applicants (who lose specific, dated employment positions without notice or opportunity to respond), is not outweighed by any countervailing benefit to consumers or competition, and is not one that consumers could reasonably have avoided.

83. As a direct and proximate result of Defendants' unfair and unlawful business practices, Plaintiff has suffered and continues to suffer injury in fact and has lost money or property, including the lost wages and employment benefits from the specific position that was effectively revoked. Plaintiff is entitled to restitution of any money or property lost as a result of the unfair competition, and to injunctive relief under Business and Professions Code section 17203.

SEVENTH CAUSE OF ACTION

Intentional Infliction of Emotional Distress

(Against All Defendants)

84. Plaintiff incorporates by reference Paragraphs 1 through 38 as though fully set forth herein.

85. Defendants' conduct as alleged herein was extreme and outrageous. Defendants

maintained Plaintiff's background check in a perpetual "Pending" status for twenty days -- four times Amazon's own stated five-day norm -- while silently vacating the confirmed training shift and start date, leaving Plaintiff in a state of prolonged uncertainty about his employment status. Defendants used, or allowed to be used, Plaintiff's sex-offender-registry status to deny him employment in direct violation of the statutory protections enacted to prevent precisely this harm. Defendants did so without providing any formal notice, any copy of the consumer report, or any opportunity to dispute or explain the information -- despite both Defendants having been on actual notice of their obligations to do so from the Lerma litigation.

86. Defendants' conduct was intentional and carried out with reckless disregard of the probability that it would cause Plaintiff severe emotional distress. Both Defendants had been through litigation on these exact issues with sophisticated counsel and knew, or should have known, that maintaining a background check in indefinite "Pending" status while vacating a confirmed start date, without providing any of the notices required by law, would cause severe emotional distress to an applicant.

87. Plaintiff has in fact suffered severe emotional distress as a result of Defendants' conduct, including anxiety, mental anguish, humiliation, embarrassment, loss of sleep, and related symptoms, in amounts to be proven at trial.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment against Defendants, and each of them, as follows:

On All Causes of Action:

1. For compensatory damages, including lost wages and employment benefits,

according to proof at trial;

2. For general damages for emotional distress, humiliation, embarrassment, anxiety, and mental anguish, according to proof at trial;

On the First Cause of Action (Penal Code §290.46(j)):

3. For actual damages, and any amount that may be determined by a jury or a court sitting without a jury, not exceeding three times the amount of actual damage, and not less than two hundred fifty dollars ($250), and attorney's fees, exemplary damages, or a civil penalty not exceeding twenty-five thousand dollars ($25,000), pursuant to Penal Code section 290.46, subdivision (j)(4)(A);

On the Second Cause of Action (Fair Chance Act, Gov. Code §12952):

4. For damages as provided by law, including any penalties available under Government Code section 12952 and the Fair Employment and Housing Act;

On the Third Cause of Action (FCRA, 15 U.S.C. §1681):

5. For statutory damages of not less than $100 and not more than $1,000 per violation, or actual damages, whichever is greater, pursuant to 15 U.S.C. section 1681n(a)(1)(A); punitive damages pursuant to 15 U.S.C. section 1681n(a)(2); and reasonable attorney's fees pursuant to 15 U.S.C. section 1681n(a)(3); or, in the alternative, actual damages and reasonable attorney's fees pursuant to 15 U.S.C. section 1681o;

On the Fourth Cause of Action (ICRAA, Civ. Code §1786):

6. For actual damages, or statutory damages in the amount of ten thousand dollars ($10,000) for knowing violations, whichever is greater, and, for willful violations, punitive damages, costs, and reasonable attorney's fees, pursuant to Civil Code section 1786.50;

On the Fifth Cause of Action (Invasion of Privacy):

7. For compensatory and general damages for invasion of privacy, according to proof at trial;

On the Sixth Cause of Action (Bus. & Prof. Code §17200):

8. For restitution of all money or property lost as a result of the unfair competition, pursuant to Business and Professions Code section 17203;

9. For injunctive relief, including an order enjoining Defendants from using information from the Sex Offender Registry or Megan's Law website for employment purposes in violation of Penal Code section 290.46(j)(2), and enjoining Amazon from taking adverse employment actions based on consumer reports without providing the notices required by the FCRA and ICRAA;

On the Seventh Cause of Action (IIED):

10. For compensatory and general damages for severe emotional distress, according to proof at trial;

On All Causes of Action:

11. For punitive and exemplary damages where authorized by statute or common law;

12. For attorney's fees and costs of suit as permitted by law;

13. For prejudgment interest as permitted by law;

14. For such other and further relief as this Court deems just and proper.

DEMAND FOR JURY TRIAL

Plaintiff hereby demands a trial by jury on all issues so triable.

Dated: July 28, 2026

Brendan Ngehsi Newanforbi

BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

VERIFICATION

I, BRENDAN NGEHSI NEWANFORBI, declare:

I am the Plaintiff in the above-entitled action. I have read the foregoing Complaint for Damages and know its contents. The matters stated therein are true of my own knowledge, except as to those matters stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on July 28, 2026,

at Stockton, California.

Brendan Ngehsi Newanforbi

BRENDAN NGEHSI NEWANFORBI

EXHIBIT 2

Sacramento County Sheriff's Office Civil E-Filed 7/29/2026 2:20 PM

SUM-100

SUMMONS
(CITACION JUDICIAL)

FOR COURT USE ONLY
(SOLO PARA USO DE LA CORTE)

ELECTRONICALLY FILED
Superior Court of California
County of Alameda
07/28/2026
Chad Finke, Executive Officer / Clerk of the Court
By: A. Gospel Deputy

NOTICE TO DEFENDANT:
(AVISO AL DEMANDADO):

AMAZON.COM SERVICES, LLC, a Delaware limited liability company; ACCURATE BACKGROUND LLC, a California limited liability company; and DOES 1-10, inclusive

YOU ARE BEING SUED BY PLAINTIFF:
(LO ESTÁ DEMANDANDO EL DEMANDANTE):

Brendan Ngehsi Newanforbi

NOTICE! You have been sued. The court may decide against you without your being heard unless you respond within 30 days. Read the information below.

You have 30 CALENDAR DAYS after this summons and legal papers are served on you to file a written response at this court and have a copy served on the plaintiff. A letter or phone call will not protect you. Your written response must be in proper legal form if you want the court to hear your case. There may be a court form that you can use for your response. You can find these court forms and more information at the California Courts Online Self-Help Center (*www.courtinfo.ca.gov/selfhelp*), your county law library, or the courthouse nearest you. If you cannot pay the filing fee, ask the court clerk for a fee waiver form. If you do not file your response on time, you may lose the case by default, and your wages, money, and property may be taken without further warning from the court.

There are other legal requirements. You may want to call an attorney right away. If you do not know an attorney, you may want to call an attorney referral service. If you cannot afford an attorney, you may be eligible for free legal services from a nonprofit legal services program. You can locate these nonprofit groups at the California Legal Services Web site (*www.lawhelpcalifornia.org*), the California Courts Online Self-Help Center (*www.courtinfo.ca.gov/selfhelp*), or by contacting your local court or county bar association. **NOTE:** The court has a statutory lien for waived fees and costs on any settlement or arbitration award of $10,000 or more in a civil case. The court's lien must be paid before the court will dismiss the case.

¡AVISO! *Lo han demandado. Si no responde dentro de 30 días, la corte puede decidir en su contra sin escuchar su versión. Lea la información a continuación.*

Tiene 30 DÍAS DE CALENDARIO después de que le entreguen esta citación y papeles legales para presentar una respuesta por escrito en esta corte y hacer que se entregue una copia al demandante. Una carta o una llamada telefónica no lo protegen. Su respuesta por escrito tiene que estar en formato legal correcto si desea que procesen su caso en la corte. Es posible que haya un formulario que usted pueda usar para su respuesta. Puede encontrar estos formularios de la corte y más información en el Centro de Ayuda de las Cortes de California (www.sucorte.ca.gov), en la biblioteca de leyes de su condado o en la corte que le quede más cerca. Si no puede pagar la cuota de presentación, pida al secretario de la corte que le dé un formulario de exención de pago de cuotas. Si no presenta su respuesta a tiempo, puede perder el caso por incumplimiento y la corte le podrá quitar su sueldo, dinero y bienes sin más advertencia.

Hay otros requisitos legales. Es recomendable que llame a un abogado inmediatamente. Si no conoce a un abogado, puede llamar a un servicio de remisión a abogados. Si no puede pagar a un abogado, es posible que cumpla con los requisitos para obtener servicios legales gratuitos de un programa de servicios legales sin fines de lucro. Puede encontrar estos grupos sin fines de lucro en el sitio web de California Legal Services, (www.lawhelpcalifornia.org), en el Centro de Ayuda de las Cortes de California, (www.sucorte.ca.gov) o poniéndose en contacto con la corte o el colegio de abogados locales. AVISO: Por ley, la corte tiene derecho a reclamar las cuotas y los costos exentos por imponer un gravamen sobre cualquier recuperación de $10,000 ó más de valor recibida mediante un acuerdo o una concesión de arbitraje en un caso de derecho civil. Tiene que pagar el gravamen de la corte antes de que la corte pueda desechar el caso.

The name and address of the court is:
(El nombre y dirección de la corte es): Superior Court of California,
County of Alameda, 1225 Fallon Street, Oakland, CA 94612

CASE NUMBER:
(Número del Caso):
26CV201554

The name, address, and telephone number of plaintiff's attorney, or plaintiff without an attorney, is:
(El nombre, la dirección y el número de teléfono del abogado del demandante, o del demandante que no tiene abogado, es):
Brendan Ngehsi Newanforbi, In Pro Per; 1455 Cat Tail Drive, Stockton, CA 95204; (209) 801-4442

DATE: 07/28/2026 Clerk, by A. Gospel, Deputy
(Fecha) Chad Finke, Executive Officer / Clerk of the Court *(Secretario)* *(Adjunto)*

(For proof of service of this summons, use Proof of Service of Summons *(form POS-010).)*
(Para prueba de entrega de esta citatión use el formulario Proof of Service of Summons, *(POS-010)).*

[SEAL]

NOTICE TO THE PERSON SERVED: You are served
1. ☐ as an individual defendant.
2. ☐ as the person sued under the fictitious name of *(specify):*
3. ☐ on behalf of *(specify):*
   under: ☐ CCP 416.10 (corporation) ☐ CCP 416.60 (minor)
   ☐ CCP 416.20 (defunct corporation) ☐ CCP 416.70 (conservatee)
   ☐ CCP 416.40 (association or partnership) ☐ CCP 416.90 (authorized person)
   ☐ other *(specify):*
4. ☐ by personal delivery on *(date):*

Form Adopted for Mandatory Use
Judicial Council of California
SUM-100 [Rev. July 1, 2009]

SUMMONS

Code of Civil Procedure §§ 412.20, 465
www.courts.ca.gov

privacy, please press the Clear This Form button after you
Print this form Save this form Clear this form

SUPERIOR COURT OF CALIFORNIA COUNTY OF ALAMEDA	Reserved for Clerk's File Stamp
COURTHOUSE ADDRESS: Hayward Hall of Justice 24405 Amador Street, Hayward, CA 94544	FILED Superior Court of California County of Alameda 07/28/2026 Chad Finke, Executive Officer / Clerk of the Court By: _____ Deputy A. Gospel
PLAINTIFF(S): Brendan Ngehsi Newanforbi	
DEFENDANT(S): Amazon.com Services, LLC, a Delaware limited liability company et al	
NOTICE OF CASE ASSIGNMENT	CASE NUMBER: 26CV201554

THIS FORM IS TO BE SERVED WITH THE SUMMONS AND COMPLAINT

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

Pursuant to Rule 3.734 of the California Rules of Court and Title 3 Chapter 2 of the Local Rules of the Superior Court of California, County of Alameda, this action is hereby assigned by the Presiding Judge for all purposes to:

ASSIGNED JUDGE:	Jamilah Jefferson
DEPARTMENT:	520
LOCATION:	Hayward Hall of Justice 24405 Amador Street, Hayward, CA 94544
PHONE NUMBER:	(510) 690-2729
FAX NUMBER:	
EMAIL ADDRESS:	Dept520@alameda.courts.ca.gov

Under direct calendaring, this case is assigned to a single judge for all purposes including trial.

Please note: In this case, any challenge pursuant to Code of Civil Procedures section 170.6 must be exercised within the time period by law. (See Code of Civ. Proc. §§ 170.6, subd. (a.)(2) and 1013)

NOTICE OF NONAVAILABILITY OF COURT REPORTERS: Effective June 4, 2012, the court will not provide a court reporter for civil law and motion hearings, any other hearing or trial in civil departments, or any afternoon hearing in Department 201 (probate). Parties may arrange and pay for the attendance of a certified shorthand reporter. In limited jurisdiction cases, parties may request electronic recording. Amended Local Rule 3.95 states: "Except as otherwise required by law, in general civil case and probate departments, the services of an official court reporter are not normally available. For civil trials, each party must serve and file a statement before the trial date indicating whether the party requests the presence of an official court reporter."

GENERAL PROCEDURES

Following assignment of a civil case to a specific department, all pleadings, papers, forms, documents and writings can be submitted for filing at either Civil Clerk's Office, located at the Rene C. Davidson Courthouse, Room 109, 1225 Fallon Street, Oakland, California, 94612, and the Hayward Hall of Justice, 24405 Amador Street, Hayward, California, 94544 and through Civil e-filing. Information regarding Civil e-filing can be found on the courts website. All documents, with the exception of the original summons and the original civil complaint, shall have clearly typed on the face page of each document, under the case number, the following:

ASSIGNED FOR ALL PURPOSES TO
JUDGE Jamilah Jefferson
DEPARTMENT 520

All parties are expected to know and comply with the Local Rules of this Court, which are available on the court's website at http://www.alameda.courts.ca.gov/Pages.aspx/Local-Rules(1) and with the California Rules of Court, which are available at www.courtinfo.ca.gov.

Parties must meet and confer to discuss the effective use of mediation or other alternative dispute processed (ADR) prior to the Initial Case Management Conference. The court encourages parties to file a "Stipulation to Attend ADR and Delay Initial Case Management Conference for 90 Days." The court's website contains this form and other ADR information. If the parties do not stipulate to attend ADR, the parties must be prepared to discuss referral to ADR at the Initial Case Management Conference.

COURT RESERVATIONS

The use of the Court Reservation System (CRS) is now mandated in many civil courtrooms within the Alameda County Superior Court. Instead of calling or emailing the courtroom to make a reservation, parties with a case assigned to a courtroom using CRS are directed to utilize CRS to make and manage their own reservations, within parameters set by the courtrooms. CRS is available 24 hours a day, seven days a week and reservations can be made from a computer or smart phone. Please note, you are prohibited from reserving more than one hearing date for the same motion.

Prior to scheduling any motion on CRS, including any Applications for Orders for Appearance and Examination, or continuing any motion, please review the online information (if any) for the courtroom in which you are reserving. There may be specific and important conditions associated with certain motions and proceedings. Information is available on the court's eCourt Public Portal at www.eportal.alameda.courts.ca.gov.

Chad Finke, Executive Officer / Clerk of the Court

By A. Gospel, Deputy Clerk

SUPERIOR COURT OF CALIFORNIA COUNTY OF ALAMEDA	Reserved for Clerk's File Stamp FILED Superior Court of California County of Alameda 07/28/2026 Clad Fiske, Executive Officer / Clerk of the Court By: _____ Deputy A Gospel
COURTHOUSE ADDRESS: Hayward Hall of Justice 24405 Amador Street, Hayward, CA 94544	
PLAINTIFF: Brendan Ngehsi Newanforbi	
DEFENDANT: Amazon.com Services, LLC, a Delaware limited liability company e	
NOTICE OF CASE MANAGEMENT CONFERENCE	CASE NUMBER: 26CV201554

TO THE PLAINTIFF(S)/ATTORNY(S) FOR PLAINTIFF(S) OF RECORD:

You are ordered to serve all named defendants and file proofs of service on those defendants with the court within 60 days of the filing of the complaint (Cal. Rules of Court, 3.110(b)).

Give notice of this conference to all other parties and file proof of service.

Your Case Management Conference has been scheduled on:

Date: 01/06/2027 Time: 10:00 AM Dept.: 520

Location: Hayward Hall of Justice
24405 Amador Street, Hayward, CA 94544

TO DEFENDANT(S)/ATTORNEY(S) FOR DEFENDANT(S) OF RECORD:

The setting of the Case Management Conference does not exempt the defendant from filing a responsive pleading as required by law, you must respond as stated on the summons.

TO ALL PARTIES who have appeared before the date of the conference must:

Pursuant to California Rules of Court, 3.725, a completed Case Management Statement (Judicial Council form CM-110) must be filed and served at least 15 calendar days before the Case Management Conference. The Case Management Statement may be filed jointly by all parties/attorneys of record or individually by each party/attorney of record.

Meet and confer, in person or by telephone as required by Cal. Rules of Court, rule 3.724.

Post jury fees as required by Code of Civil Procedure section 631.

If you do not follow the orders above, the court may issue an order to show cause why you should not be sanctioned under Cal. Rules of Court, rule 2.30. Sanctions may include monetary sanctions, striking pleadings or dismissal of the action.

The judge may place a Tentative Case Management Order in your case's on-line register of actions before the conference. This order may establish a discovery schedule, set a trial date or refer the case to Alternate Dispute Resolution, such as mediation or arbitration. Check the court's eCourt Public Portal for each assigned department's procedures regarding tentative case management orders at https://eportal.alameda.courts.ca.gov.

Expedited Jury Trials

If the parties agree, they may try the case in an Expedited Jury Trial. Code of Civ. Proc. § 630.01 et seq. In short, the parties would agree to the following: 8 jurors (6 must agree); 3 peremptory challenges per side; 5-hour time limit per side, unless otherwise agreed and approved; one to two court days for completion, unless otherwise agreed and approved; high/low arrangement option; and limited right to appeal. For additional information, please see the following links:

- EJT-010-INFO* Expedited Jury Trial Information Sheet (ca.gov)
- EJT-008 Agreement of Parties (Mandatory Expedited Jury Trial Procedures) (ca.gov)
- EJT-020 [Proposed] Consent Order for Voluntary Expedited Jury Trial (ca.gov)

SUPERIOR COURT OF CALIFORNIA COUNTY OF ALAMEDA	Reserved for Clerk's File Stamp
COURTHOUSE ADDRESS: Hayward Hall of Justice 24405 Amador Street, Hayward, CA 94544	**FILED** Superior Court of California County of Alameda 07/28/2026 Chad Finke, Executive Officer / Clerk of the Court By: A. Gospel, Deputy
PLAINTIFF/PETITIONER: Brendan Ngehsi Newanforbi	
DEFENDANT/RESPONDENT: Amazon.com Services, LLC, a Delaware limited liability company et al	
CERTIFICATE OF MAILING	CASE NUMBER: 26CV201554

I, the below-named Executive Officer/Clerk of the above-entitled court, do hereby certify that I am not a party to the cause herein, and that on this date I served the attached document upon each party or counsel named below by placing the document for collection and mailing so as to cause it to be deposited in the United States mail at the courthouse in Oakland, California, one copy of the original filed/entered herein in a separate sealed envelope to each address as shown below with the postage thereon fully prepaid, in accordance with standard court practices.

Brendan Ngehsi Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204

Chad Finke, Executive Officer / Clerk of the Court

Dated: 07/29/2026

By: A. Gospel

A. Gospel, Deputy Clerk

CERTIFICATE OF MAILING

EXHIBIT 3

CM-010

ATTORNEY OR PARTY WITHOUT ATTORNEY
STATE BAR NUMBER:
NAME: Brendan Ngehsi Newanforbi
FIRM NAME:
STREET ADDRESS: 1455 Cat Tail Drive
CITY: Stockton STATE: CA ZIP CODE: 95204
TELEPHONE NO.: (209) 801-4442 FAX NO.:
EMAIL ADDRESS: bnn.cdl@gmail.com
ATTORNEY FOR (*name*): Plaintiff, In Pro Per

FOR COURT USE ONLY

ELECTRONICALLY FILED
Superior Court of California,
County of Alameda
07/28/2026 at 07:19:05 AM
By: Andrel Gospel,
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF Alameda
STREET ADDRESS: 1225 Fallon Street
MAILING ADDRESS: 1225 Fallon Street
CITY AND ZIP CODE: Oakland, CA 94612
BRANCH NAME: Rene C. Davidson Courthouse

CASE NAME:
Newanforbi v. Amazon.com Services, LLC et al.

CIVIL CASE COVER SHEET

☒ **Unlimited** (Amount demanded exceeds $35,000)
☐ **Limited** (Amount demanded is $35,000 or less)

Complex Case Designation

☐ Counter ☐ Joinder

Filed with first appearance by defendant (Cal. Rules of Court, rule 3.402)

CASE NUMBER:
26CV201554

JUDGE:
DEPT.:

Items 1–6 below must be completed (see instructions on page 2 and examples on page 3).

1. Check **one** box below for the case type that best describes this case:

Auto Tort
- ☐ Auto (22)
- ☐ Uninsured motorist (46)

Asbestos
- ☐ Asbestos (04)

Other PI/PD/WD (Personal Injury/Property Damage/Wrongful Death) Tort
- ☐ Product liability (24)
- ☐ Medical malpractice (45)
- ☐ Other PI/PD/WD (23)

Non-PI/PD/WD (Other) Tort
- ☐ Business tort/Unfair business practice (07)
- ☐ Civil rights (08)
- ☐ Defamation (13)
- ☐ Fraud (16)
- ☐ Intellectual property (19)
- ☐ Professional negligence (25)
- ☐ Other non-PI/PD/WD tort (35)

Employment
- ☐ Wrongful termination (36)
- ☒ Other employment (15)

Contract
- ☐ Breach of contract/warranty (06)
- ☐ Song-Beverly Act: Motor Vehicle Lemon Law (49)
- ☐ Rule 3.740 collections (09)
- ☐ Other collections (09)
- ☐ Insurance coverage (18)
- ☐ Other contract (37)

Real Property
- ☐ Eminent domain/Inverse condemnation (14)
- ☐ Wrongful eviction (33)
- ☐ Other real property (26)

Unlawful Detainer
- ☐ Commercial (31)
- ☐ Residential (32)
- ☐ Drugs (38)

Judicial Review
- ☐ Asset forfeiture (05)
- ☐ Petition re arbitration award (11)
- ☐ Writ of mandate (02)
- ☐ Other judicial review (39)

Employment Development Department (EDD)
- ☐ EDD decision review (48)

Provisionally Complex Civil Litigation (Cal. Rules of Court, rules 3.400–3.404)
- ☐ Antitrust/Trade regulation (03)
- ☐ Construction defect (10)
- ☐ Mass tort (40)
- ☐ Securities litigation (28)
- ☐ Environmental/Toxic tort (30)
- ☐ Comprehensive groundwater adjudication (47)
- ☐ Insurance coverage claims arising from the above listed provisionally complex case types (41)

Enforcement of Judgment
- ☐ Enforcement of judgment (20)

Miscellaneous Civil Complaint
- ☐ RICO (27)
- ☐ Other complaint *(not specified above)* (42)

Miscellaneous Civil Petition
- ☐ Partnership and corporate governance (21)
- ☐ Other petition *(not specified above)* (43)

2. Is this case complex under rule 3.400 of the California Rules of Court? ☐ Yes ☒ No
   If the case is complex, mark the factors requiring exceptional judicial management:
   a. ☐ Large number of separately represented parties
   b. ☐ Extensive motion practice raising difficult or novel issues that will be time-consuming to resolve
   c. ☐ Substantial amount of documentary evidence
   d. ☐ Large number of witnesses
   e. ☐ Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court
   f. ☐ Substantial postjudgment judicial supervision
3. Remedies sought *(check all that apply):*
   a. ☒ monetary
   b. ☒ nonmonetary; declaratory or injunctive relief
   c. ☒ punitive
4. Number of causes of action *(specify):* 7
5. Is this case a class action suit? ☐ Yes ☒ No
6. If there are any known related cases, file and serve a notice of related case. *(You may use form CM-015.)*

Date: July 28, 2026

Brendan Ngehsi Newanforbi
Type or print name

Brendan Ngehsi Newanforbi
Signature of party or attorney for party

NOTICE

- Plaintiff must file this cover sheet with the first paper filed in the action or proceeding (except small claims cases or cases filed under the Probate Code, Family Code, or Welfare and Institutions Code). (Cal. Rules of Court, rule 3.220.) Failure to file may result in sanctions.
- File this cover sheet in addition to any cover sheet required by local court rule.
- If this case is complex under rule 3.400 et seq. of the California Rules of Court, or a collections case under rule 3.740, you must serve a copy of this cover sheet on all other parties to the action or proceeding. (Cal. Rules of Court, rule 3.220.)
- Unless this is a collections case under rule 3.740 or a complex case, this cover sheet will be used for statistical purposes only.

INSTRUCTIONS ON HOW TO COMPLETE THE COVER SHEET

To Plaintiffs and Others Filing First Papers. If you are filing a first paper (for example, a complaint) in a civil case, you **must** complete and file, along with your first paper, the Civil Case Cover Sheet contained on pages 1 and 2. This information will be used to compile statistics about the types and numbers of cases filed. You must complete items 1 through 6 on the sheet. In item 1, you must check **one** box for the case type that best describes the case. If the case fits both a general and a more specific type of case listed in item 1, check the more specific one. If the case has multiple causes of action, check the box that best indicates the **primary** cause of action. To assist you in completing the sheet, examples of the cases that belong under each case type in item 1 are provided on page 3 of this form. A cover sheet must be filed only with your initial paper. Failure to file a cover sheet with the first paper filed in a civil case may subject a party, its counsel, or both to sanctions under rules 2.30 and 3.220 of the California Rules of Court.

To Parties in Rule 3.740 Collections Cases. A "collections case" under rule 3.740 of the California Rules of Court is defined as an action for recovery of money owed in a sum stated to be certain that is not more than $35,000, exclusive of interest and attorney's fees, arising from a transaction in which property, services, or money was acquired on credit. A collections case does not include an action seeking the following: (1) tort damages, (2) punitive damages, (3) recovery of real property, (4) recovery of personal property, or (5) a prejudgment writ of attachment. The identification of a case as a rule 3.740 collections case on this form means that it will be exempt from the general time-for-service requirements and case management rules, unless a defendant files a responsive pleading. A rule 3.740 collections case will be subject to the requirements for service and obtaining a judgment in rule 3.740.

To Parties in Complex Cases. In complex cases only, parties must also use the Civil Case Cover Sheet to designate whether the case is complex. If a plaintiff believes the case is complex under rule 3.400 of the California Rules of Court, this must be indicated by completing the appropriate boxes in items 1 and 2. If a plaintiff designates a case as complex, the cover sheet must be served with the complaint on all parties to the action. A defendant may file and serve no later than the time of its first appearance a joinder in the plaintiff's designation, a counter-designation that the case is not complex, or, if the plaintiff has made no designation, a designation that the case is complex.

SEE PAGE 3 FOR INFORMATION PURPOSES ONLY.

CASE TYPES AND EXAMPLES

The list below provides explanations and examples for the case type checkboxes listed in item 1 on this form. The lists of examples below are not meant to be exhaustive, and some case types may have causes of action not listed here.

Auto Tort
- Auto (22)–Personal Injury/Property Damage/Wrongful Death
- Uninsured Motorist *(if the case involves an uninsured motorist claim subject to arbitration, check this item instead of Auto)* (46)

Asbestos
- Asbestos (04)
  - Asbestos Property Damage
  - Asbestos Personal Injury/Wrongful Death

Other PI/PD/WD (Personal Injury/Property Damage/Wrongful Death) Tort
- Product Liability *(not asbestos or environmental/toxic tort)* (24)
- Medical Malpractice (45)
  - Medical Malpractice–Physicians & Surgeons
  - Other Professional Health Care Malpractice
- Other PI/PD/WD (23)
  - Premises Liability (e.g., slip and fall)
  - Intentional Bodily Injury/PD/WD (e.g., assault, vandalism)
  - Intentional Infliction of Emotional Distress
  - Negligent Infliction of Emotional Distress
  - Other PI/PD/WD

Non-PI/PD/WD (Other) Tort
- Business Tort/Unfair Business Practice (07)
- Civil Rights (e.g., discrimination, false arrest) *(not civil harassment)* (08)
- Defamation (e.g., slander, libel) (13)
- Fraud *(other than contract)* (16)
- Intellectual Property (19)
- Professional Negligence (25)
  - Legal Malpractice
  - Other Professional Malpractice *(not medical)*
- Other Non-PI/PD/WD Tort (35)

Employment
- Wrongful Termination (36)
- Other Employment (15)

Contract
- Breach of Contract/Warranty (06)
  - Breach of Rental/Lease Contract *(not unlawful detainer or wrongful eviction)*
  - Contract/Warranty Breach–Seller Plaintiff *(not fraud)*
  - Negligent Breach of Contract/Warranty
  - Other Breach of Contract/Warranty
- Song-Beverly Act: Motor Vehicle Lemon Law *(check this item if the case involves a Song-Beverly Act claim regarding a motor vehicle)* (49)
- Rule 3.740 Collections *(as defined in Cal. Rules of Court, rule 3.740(a))* (09)
- Other Collections (e.g., money owed, open book accounts, promissory note) (09)
- Insurance Coverage *(not provisionally complex)* (18)
  - Auto Subrogation
  - Other Coverage
- Other Contract (37)
  - Contractual Fraud
  - Other Contract Dispute

Real Property
- Eminent Domain/Inverse Condemnation (14)
- Wrongful Eviction (33)
- Other Real Property (e.g., quiet title) (26)
  - Writ of Possession of Real Property
  - Mortgage Foreclosure
  - Quiet Title
  - Other Real Property *(not unlawful detainer)*

Unlawful Detainer
- Commercial (31)
- Residential (32)
- Drugs *(if the case involves illegal drugs, check this item; otherwise, choose Commercial or Residential)* (38)

Judicial Review
- Asset Forfeiture (05)
- Petition re Arbitration Award (11)
- Writ of Mandate (02)
  - Writ–Administrative Mandamus
  - Writ–Mandamus on Limited Court Case Matter
  - Writ–Other Limited Court Case Review
- Other Judicial Review (39)
  - Review of Health Officer Order
  - Notice of Appeal–Labor Commissioner Appeals

Employment Development Department (EDD)
- EDD Decision Review *(if the case involves an Employment Development Department decision, check this item instead of wrongful termination or other employment)* (48)

Provisionally Complex Civil Litigation (Cal. Rules of Court, rules 3.400–3.404)
- Antitrust/Trade Regulation (03)
- Construction Defect (10)
- Mass Tort (40)
- Securities Litigation (28)
- Environmental/Toxic Tort (30)
- Comprehensive Groundwater Adjudication (47)
- Insurance Coverage Claims *(arising from provisionally complex case type listed above)* (41)

Enforcement of Judgment
- Enforcement of Judgment (20)
  - Abstract of Judgment (Out of County)
  - Confession of Judgment *(non-domestic relations)*
  - Sister-State Judgment
  - Administrative Agency Award
  - Petition/Certification of Entry of Judgment on Unpaid Taxes
  - Other Enforcement of Judgment Case

Miscellaneous Civil Complaint
- RICO (27)
- Other Complaint *(not specified above)* (42)
  - Declaratory Relief Only
  - Injunctive Relief Only *(non-harassment)*
  - Mechanic's Lien
  - Other Commercial Complaint Case *(non-tort/non-complex)*
  - Other Civil Complaint *(non-tort/non-complex)*

Miscellaneous Civil Petition
- Partnership and Corporate Governance (21)
- Other Petition *(not specified above)* (43)
  - Civil Harassment
  - Workplace Violence
  - Elder/Dependent Adult Abuse
  - Election Contest
  - Petition for Name Change
  - Petition for Relief From Government Claim Requirement
  - Other Civil Petition

For your protection and privacy, please press the Clear button after you have printed the form.

Print Save Clear

EXHIBIT 4

FW-003 Order on Court Fee Waiver (Superior Court)

Clerk stamps date here when form is filed.

FILED
Superior Court of California
County of Alameda
08/03/2026
Chad Finke, Executive Officer / Clerk of the Court
By: Joshua W Rose Deputy
J. Rose

Fill in court name and street address:

Superior Court of California, County of Alameda

Hayward Hall of Justice
24405 Amador Street
Hayward CA 94544

Fill in case number and name:

Case Number: 26CV201554

Case Name: NEWANFORBI vs AMAZON.COM SERVICES, LL

1 Person who asked the court to waive court fees:

Name: Brendan Ngehsi Newanforbi
Street or mailing address: 1455 Cat Tail Drive
City: Stockton State: CA Zip: 95204

2 Lawyer, if person in 1 has one *(name, firm name, address, phone number, e-mail, and State Bar number):*

3 A request to waive court fees was filed on *(date):* 07/28/2026

☐ The court made a previous fee waiver order in this case on *(date):*

Read this form carefully. All checked boxes ☑ are court orders.

Notice: The court may order you to answer questions about your finances and later order you to pay back the waived fees. If this happens and you do not pay, the court can make you pay the fees and also charge you collection fees. If there is a change in your financial circumstances during this case that increases your ability to pay fees and costs, you must notify the trial court within five days. (Use form FW-010.) If you win your case, the trial court may order the other side to pay the fees. If you settle your civil case for **$10,000** or more, the trial court will have a lien on the settlement in the amount of the waived fees. The trial court may not dismiss the case until the lien is paid.

4 After reviewing your: ☑ *Request to Waive Court Fees* ☐ *Request to Waive Additional Court Fees* **the court makes the following orders:**

a. ☐ The court **grant**s your request, as follows:

(1) ☐ **Fee Waiver.** The court grants your request and waives your court fees and costs listed below. *(Cal. Rules of Court, rules 3.55 and 8.818.)* You do not have to pay the court fees for the following:

- Filing papers in superior court
- Making copies and certifying copies
- Sheriff's fee to give notice
- Court fee for phone hearing
- Giving notice and certificates
- Sending papers to another court department
- Reporter's fee for attendance at hearing or trial, if the court is not electronically recording the proceeding and you request that the court provide an official reporter
- Assessment for court investigations under Probate Code section 1513, 1826, or 1851
- Preparing, certifying, copying, and sending the clerk's transcript on appeal
- Holding in trust the deposit for a reporter's transcript on appeal under rule 8.130 or 8.834
- Making a transcript or copy of an official electronic recording under rule 8.835

(2) ☐ **Additional Fee Waiver.** The court grants your request and waives your additional superior court fees and costs that are checked below. *(Cal. Rules of Court, rule 3.56.)* You do not have to pay for the checked items.

☐ Jury fees and expenses
☐ Fees for court-appointed experts
☐ Other *(specify):* _____
☐ Fees for a peace officer to testify in court
☐ Court-appointed interpreter fees for a witness

Your name: Brendan Ngehsi Newanforbi

Case Number: 26CV201554

b. ☑ The court **denies** your fee waiver request because:

Warning! If you miss the deadline below, the court cannot process your request for hearing or the court papers you filed with your original request. If the papers were a notice of appeal, the appeal may be dismissed.

(1) Your request is incomplete. You have **10 days** after the clerk gives notice of this Order (see date of service ☐ on next page) to:

- Pay your fees and costs, or
- File a new revised request that includes the incomplete items listed:
  ☐ Below ☐ On Attachment 4b(1)

(2) ☐ The information you provided on the request shows that you are not eligible for the fee waiver you requested for the reasons stated: ☐ Below ☐ On Attachment 4b(2)

The court has enclosed a blank *Request for Hearing About Court Fee Waiver Order (Superior Court)* (form FW-006).You have **10 days** after the clerk gives notice of this order (see date of service below) to:

- Pay your fees and costs in full or the amount listed in c below, or
- Ask for a hearing in order to show the court more information. *(Use form FW-006 to request hearing.)*

c. (1) ☑ The court needs more information to decide whether to grant your request. You must go to court on the date on page 3. The hearing will be about the questions regarding your eligibility that are stated:
☑ Below ☐ On Attachment 4c(1)

No income or source of any money or benefit provided; unclear how Plaintiff is living; or whether any money is paid to any source for any reason each month

(2) ☐ Bring the items of proof to support your request, if reasonably available, that are listed:
☐ Below ☐ On Attachment 4c(2)

This is a Court Order.

Your name: Brendan Ngehsi Newanforbi

Case Number: 26CV201554

Hearing Date

Date: 08/18/2026 Time: 11:30 AM

Dept.: FHO Room:

Name and address of court if different from above:
Department FHO
24405 Amador Street, Hayward, CA 94544

Warning! If item c(1) is checked, and you do not go to court on your hearing date, the judge will deny your request to waive court fees, and you will have 10 days to pay your fees. If you miss that deadline, the court cannot process the court papers you filed with your request. If the papers were a notice of appeal, the appeal may be dismissed.

Date: 07/31/2026

Jamilah Jefferson

Signature of (check one): ☑ *Judicial Officer* ☐ *Clerk, Deputy*

Jamilah A. Jefferson / Judge

Request for Accommodations

Assistive listening systems, computer-assisted real-time captioning, or sign language interpreter services are available if you ask at least five days before the hearing. Contact the clerk's office for *Request for Accommodations by Persons With Disabilities and Response* (form MC-410). (Civ. Code, § 54.8.)

Clerk's Certificate of Service

I certify that I am not involved in this case and *(check one):*

☐ I handed a copy of this Order to the party and attorney, if any, listed in (1) and (2), at the court, on the date below.

☑ This order was mailed first class, postage paid, to the party and attorney, if any, at the addresses listed in (1) and (2), from *(city):* Hayward, California, on the date below.

☐ A certificate of mailing is attached.

Date: 08/03/2026

Chad Finke, Executive Officer / Clerk of the Court

Clerk, by Joshua M Rose, Deputy

Name: J. Rose

This is a Court Order.

CLERK'S CERTIFICATE OF ELECTRONIC SERVICE ON FEE WAIVER ORDER

I certify that I am not a party to this cause and that the document: FW-003 - Order on Court Fee Waiver (Superior Court), has been transmitted electronically by the Alameda County Superior Court from Hayward, CA to the electronic service provider that submitted the transaction. The transmission originated from the Alameda County Superior Court on 08/03/2026 at 11:12:22 AM PDT. The electronically transmitted document(s) is in accordance with Rule 2.251 of the California Rules of Court. The list of electronically served recipient(s) are listed below:

Party: Brendan Ngehsi Newanforbi

EXHIBIT 5

ELECTRONICALLY FILED
Superior Court of California,
County of Alameda
08/06/2026 at 09:43:27 PM
By: Angela Linhares,
Deputy Clerk

BRENDAN NGEHSI NEWANFORBI
Plaintiff In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

AMAZON.COM SERVICES, LLC, a Delaware limited liability company; ACCURATE BACKGROUND LLC; and DOES 1 through 10, inclusive,

Defendants.

Case No. 26CV201554

NOTICE OF PAYMENT OF FILING FEE; WITHDRAWAL OF REQUEST TO WAIVE COURT FEES AS MOOT

(Gov. Code § 70611(a))

Fee Waiver Hearing:
Date: August 18, 2026
Time: 11:30 a.m.
Dept.: FHO

Assigned for all purposes to:
Hon. Jamilah Jefferson, Dept. 520
CMC: Jan. 6, 2027, 10:00 a.m.
Action Filed: July 28, 2026

NOTICE OF PAYMENT OF FILING FEE; WITHDRAWAL OF REQUEST TO WAIVE COURT FEES AS MOOT

TO THE HONORABLE COURT, THE CLERK OF THE COURT, AND ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that Plaintiff Brendan Ngehsi Newanforbi, appearing in propria persona, has paid the first-paper filing fee in this action in full, in the amount of $435.00 (Gov.

Code, § 70611(a)). The particulars of payment are as follows.

1. Payment. On August 3, 2026, Plaintiff purchased a United States Postal Service money order in the amount of $435.00, bearing **Serial No. 55300687696**, at the United States Post Office located at 450 South Abel Street, Milpitas, California 95035, at approximately 4:29 p.m. Pacific Time. A money order issuance fee of $2.65 was paid in addition to the face amount, for a total of $437.65.

2. Transmittal to the Court. At approximately 4:38 p.m. Pacific Time the same day, Plaintiff deposited the money order with the United States Postal Service at the same location, enclosed in a First-Class Mail large envelope together with a cover letter dated August 3, 2026, addressed to the Clerk of the Court, Department FHO, Hayward Hall of Justice, 24405 Amador Street, Hayward, California 94544. Postage of $1.69 was prepaid and the Postal Service gave an estimated delivery date of Thursday, August 6, 2026. The envelope was sent by standard First-Class Mail and therefore bears no tracking number.

3. Documentary support. The foregoing is documented by the United States Postal Service electronic receipt for August 3, 2026, which records both the issuance of money order Serial No. 55300687696 (transaction no. 061, receipt no. 036372) and the First-Class Mail large-envelope postage to Hayward, California 94544 purchased nine minutes later (transaction no. 062, receipt no. 036373). Plaintiff has retained that receipt and will lodge a copy with the Court upon request or at any hearing on this matter.

4. Request to Waive Court Fees is moot. Because the filing fee has now been paid in full, Plaintiff hereby **WITHDRAWS** his pending Request to Waive Court Fees (Judicial Council form FW-001) in this action. Plaintiff no longer seeks a waiver of court fees and costs here, and the Court need not reach the questions identified in its Order on Court Fee Waiver (form FW-003) signed July 31, 2026.

5. Request that the August 18, 2026 hearing be taken off calendar. The Court's Order on Court Fee Waiver set a hearing for August 18, 2026, at 11:30 a.m. in Department FHO for the sole purpose of obtaining further information in support of the fee-waiver request. That request having been withdrawn and the fee having been paid, no issue remains for the Court to decide, and Plaintiff respectfully requests that the hearing be taken off calendar. Plaintiff will appear on that date notwithstanding this notice if the Court requires his appearance or if payment has not by then been posted to the docket.

6. No effect on the merits. This notice addresses the payment of court fees only. Nothing in it is intended as, or shall be construed as, a waiver or limitation of any claim, right, or remedy asserted in the Verified Complaint, nor does it alter any deadline in this action.

Dated: August 7, 2026

Respectfully submitted,



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

DECLARATION OF BRENDAN NGEHSI NEWANFORBI

I, Brendan Ngehsi Newanforbi, declare:

1. I am the Plaintiff in this action and appear in propria persona. I have personal knowledge of the facts stated below and, if called as a witness, could and would testify competently to them.

2. On August 3, 2026, at approximately 4:29 p.m. Pacific Time, I purchased a United States Postal Service money order in the amount of $435.00, bearing Serial No. 55300687696, at the United States Post Office located at 450 South Abel Street, Milpitas, California 95035, and paid an additional $2.65 money order issuance fee, for a total of $437.65.

3. That money order was purchased for the specific purpose of paying the $435.00 first-paper filing fee in this action, Newanforbi v. Amazon.com Services, LLC, et al., Case No. 26CV201554. On the same date I purchased a separate money order in the same amount for an unrelated matter; that other money order bears a different serial number and was mailed to a different court. The money order identified in paragraph 2, Serial No. 55300687696, is the one mailed to this Court.

4. At approximately 4:38 p.m. Pacific Time on August 3, 2026, at the same post office, I enclosed that money order in a First-Class Mail large envelope together with a cover letter of the same date, addressed the envelope to the Clerk of the Court, Department FHO, Hayward Hall of Justice, 24405 Amador Street, Hayward, California 94544, prepaid $1.69 in postage, and deposited it with the United States Postal Service. The Postal Service gave an estimated delivery date of Thursday, August 6, 2026. I did not purchase tracking, and the mailing therefore bears no tracking number.

5. I have retained the United States Postal Service electronic receipt documenting both transactions described above, and I am prepared to lodge a copy of it with the Court.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on August 7, 2026, at Stockton, California.



BRENDAN NGEHSI NEWANFORBI

Declarant

EXHIBIT 6

ELECTRONICALLY FILED
Superior Court of California,
County of Alameda
08/06/2026 at 09:43:27 PM
By: Angela Linhares,
Deputy Clerk

BRENDAN NGEHSI NEWANFORBI
Plaintiff In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **AMAZON.COM SERVICES, LLC, a Delaware limited liability company; ACCURATE BACKGROUND LLC; and DOES 1 through 10, inclusive,** Defendants.	Case No. 26CV201554 **NOTICE OF AMOUNT OF PUNITIVE DAMAGES SOUGHT** (Code Civ. Proc. § 425.115; Civ. Code § 3294) TO BE SERVED ON: **Amazon** Assigned to: Hon. Jamilah Jefferson, Dept. 520 CMC: Jan. 6, 2027, 10:00 a.m. Action Filed: July 28, 2026

NOTICE OF AMOUNT OF PUNITIVE DAMAGES SOUGHT

(Code of Civil Procedure section 425.115)

TO DEFENDANT AMAZON.COM SERVICES, LLC, a Delaware limited liability company:

NOTICE TO DEFENDANT:

Brendan Ngehsi Newanforbi reserves the right to seek $250,000.00 in punitive damages when Brendan Ngehsi Newanforbi seeks a judgment in the suit filed against you.

This Notice is served pursuant to Code of Civil Procedure section 425.115 to preserve Plaintiff's right to seek punitive damages under Civil Code section 3294 in connection with any default judgment, court judgment after default, or other judgment in this action. The amount stated above is the amount of punitive damages Plaintiff presently seeks against you; if you appear in the action, Plaintiff shall not be limited to that amount. (Code Civ. Proc., § 425.115, subds. (b)-(c).)

This Notice is directed to you alone. A separate Notice under section 425.115 is being served on each other named defendant against whom Plaintiff seeks punitive damages in this action.

PLEASE TAKE FURTHER NOTICE that a Case Management Conference in this action is set for January 6, 2027, at 10:00 a.m., in Department 520 (Hayward Hall of Justice) of the Superior Court of California, County of Alameda, before the Honorable Jamilah Jefferson.

Dated: August 7, 2026

Respectfully submitted,



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

EXHIBIT 7

BRENDAN NGEHSI NEWANFORBI
Plaintiff In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

ELECTRONICALLY FILED
Superior Court of California,
County of Alameda
08/06/2026 at 09:43:27 PM
By: Angela Linhares,
Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **AMAZON.COM SERVICES, LLC, a Delaware limited liability company; ACCURATE BACKGROUND LLC; and DOES 1 through 10, inclusive,** Defendants.	Case No. 26CV201554 **NOTICE OF AMOUNT OF PUNITIVE DAMAGES SOUGHT** (Code Civ. Proc. § 425.115; Civ. Code § 3294) TO BE SERVED ON: **Accurate Background** Assigned to: Hon. Jamilah Jefferson, Dept. 520 CMC: Jan. 6, 2027, 10:00 a.m. Action Filed: July 28, 2026

NOTICE OF AMOUNT OF PUNITIVE DAMAGES SOUGHT

(Code of Civil Procedure section 425.115)

TO DEFENDANT ACCURATE BACKGROUND LLC:

NOTICE TO DEFENDANT:

Brendan Ngehsi Newanforbi reserves the right to seek $100,000.00 in punitive damages when Brendan Ngehsi Newanforbi seeks a judgment in the suit filed against you.

This Notice is served pursuant to Code of Civil Procedure section 425.115 to preserve Plaintiff's right to seek punitive damages under Civil Code section 3294 in connection with any default judgment, court judgment after default, or other judgment in this action. The amount stated above is the amount of punitive damages Plaintiff presently seeks against you; if you appear in the action, Plaintiff shall not be limited to that amount. (Code Civ. Proc., § 425.115, subds. (b)-(c).)

This Notice is directed to you alone. A separate Notice under section 425.115 is being served on each other named defendant against whom Plaintiff seeks punitive damages in this action.

PLEASE TAKE FURTHER NOTICE that a Case Management Conference in this action is set for January 6, 2027, at 10:00 a.m., in Department 520 (Hayward Hall of Justice) of the Superior Court of California, County of Alameda, before the Honorable Jamilah Jefferson.

Dated: August 7, 2026

Respectfully submitted,



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

EXHIBIT 8

ATTORNEY (Name and Address): SBN:	FOR COURT USE ONLY
Brendan Ngehsi Newanforbi **1455 Cat Tail Drive** **Stockton, CA 95204** EMAIL: **bnn.cdl@gmail.com** ATTORNEY FOR: **In Propria Persona**	**ELECTRONICALLY FILED** Superior Court of California, County of Alameda **08/07/2026 at 11:16:36 AM** By: Maria Alvarado, Deputy Clerk
NAME OF COURT, JUDICIAL DISTRICT or BRANCH COURT, IF ANY: **Alameda County Superior Court-1225** **1225 Fallon St** **Oakland, CA 94612**	
PLAINTIFF: **Brendan Ngehsi Newanforbi** DEFENDANT: **Amazon.com Services, LLC, a Delaware limited liability compa**	COURT CASE NO: **26CV201554**
Proof of Service of Summons	LEVYING OFFICER FILE NO: **2026027206**

1. At the time of the service I was at least 18 years of age and not a party to this action.
2. I served copies of the:
   f. other *(specify documents):*
   Certificate of Mailing, Complaint for Damages, Notice of Case Assignment, Notice of Case Management Conference, Summons
3. a. Party Served *(specify name of party as shown on documents served):*
   Amazon.com Services, LLC, a Delaware limited liability company
   b. Person (other than the party in item 3a) served on behalf of an entity or as an authorized agent (and not a person under 5b on whom substituted service was made) *(specify name and relationship to the party named in item 3a):*
   Rebecca Vang / Authorized Agent
4. Address where party was served: **C/O CSC - Lawyers Incorporating Service**
   2710 Gateway Oaks Drive, Suite 150N
   Sacramento, CA 95833
5. I served the party:
   a. **by personal service.** I personally delivered the documents listed in item 2 to the party or person authorized to receive service of process for the party (1) on: 07/31/2026 at: 12:56 PM.
6. the "Notice to the Person Served" (on the summons) was completed as follows:
   Not Applicable
7. **Person who served the papers:**
   a. Name: **F. Conley**
   b. Address: **Sheriff's Civil Bureau, 2969 Prospect Park Drive, Suite 200, Rancho Cordova, CA 95670**
   c. Telephone number: **(916) 875-2665**
   d. **The fee** for service was: **$50.00**
8. **I declare** under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: Tuesday, August 4, 2026 **by:** _____

Sheriff's Authorized Agent
Jim Cooper

(c) CountySuite Sheriff, Teleosoft, Inc.

Alameda County Superior Court-1225
1225 Fallon St
Oakland, CA 94612

EXHIBIT 9

POS-010

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address):	FOR COURT USE ONLY
Brendan Ngehsi Newanforbi 1455 Cat Tail Drive Stockton, CA 95204 TELEPHONE NO.: 209-801-4442 FAX NO. (Optional): E-MAIL ADDRESS (Optional): ATTORNEY FOR (Name): Plaintiff In Pro Per	**ELECTRONICALLY FILED** Superior Court of California, County of Alameda **08/07/2026 at 11:16:36 AM** By: Maria Alvarado, Deputy Clerk
SUPERIOR COURT OF CALIFORNIA, COUNTY OF ALAMEDA STREET ADDRESS: 24405 Amador Street MAILING ADDRESS: Same CITY AND ZIP CODE: Hayward, 94544 BRANCH NAME: Hayward Hall of Justice	
PLAINTIFF/PETITIONER: Brendan Ngehsi Newanforbi DEFENDANT/RESPONDENT: Amazon.com Services, LLC, et al.	CASE NUMBER: 26CV201554
PROOF OF SERVICE OF SUMMONS	Ref. No. or File No.:

(Separate proof of service is required for each party served.)

1. At the time of service I was at least 18 years of age and not a party to this action.
2. I served copies of:
   a. [x] summons
   b. [x] complaint
   c. [ ] Alternative Dispute Resolution (ADR) package
   d. [ ] Civil Case Cover Sheet *(served in complex cases only)*
   e. [ ] cross-complaint
   f. [x] other *(specify documents):* Notice of Case Assignment; Notice of Case Management Conference; Certificate of Mailing
3. a. Party served *(specify name of party as shown on documents served):*
   ACCURATE BACKGROUND LLC, a California limited liability company
   b. [x] Person (other than the party in item 3a) served on behalf of an entity or as an authorized agent (and not a person under item 5b on whom substituted service was made) *(specify name and relationship to the party named in item 3a):*
   CT Corporation System, Registered Agent, Jaqueline Mejia, Agent.
4. Address where the party was served:
   330 N. Brand Blvd., #700, Glendale, CA 91203
5. I served the party *(check proper box)*
   a. [x] **by personal service.** I personally delivered the documents listed in item 2 to the party or person authorized to receive service of process for the party (1) on *(date):* 7/31/2026 (2) at *(time):* 11:00AM
   b. [ ] **by substituted service.** On *(date):* at *(time):* I left the documents listed in item 2 with or in the presence of *(name and title or relationship to person indicated in item 3):*
      (1) [ ] **(business)** a person at least 18 years of age apparently in charge at the office or usual place of business of the person to be served. I informed him or her of the general nature of the papers.
      (2) [ ] **(home)** a competent member of the household (at least 18 years of age) at the dwelling house or usual place of abode of the party. I informed him or her of the general nature of the papers.
      (3) [ ] **(physical address unknown)** a person at least 18 years of age apparently in charge at the usual mailing address of the person to be served, other than a United States Postal Service post office box. I informed him or her of the general nature of the papers.
      (4) [ ] I thereafter mailed (by first-class, postage prepaid) copies of the documents to the person to be served at the place where the copies were left (Code Civ. Proc., § 415.20). I mailed the documents on *(date):* from *(city):* **or** [ ] a declaration of mailing is attached.
      (5) [ ] I attach a **declaration of diligence** stating actions taken first to attempt personal service.

PLAINTIFF/PETITIONER: Brendan Ngehsi Nawanforbi DEFENDANT/RESPONDENT: Amazon.com Services, LLC, et al.	CASE NUMBER: 26CV201554

5. c. ☐ **by mail and acknowledgment of receipt of service.** I mailed the documents listed in item 2 to the party, to the address shown in item 4, by first-class mail, postage prepaid,
   (1) on *(date)*: (2) from *(city)*:
   (3) ☐ with two copies of the *Notice and Acknowledgment of Receipt* and a postage-paid return envelope addressed to me. *(Attach completed* Notice and Acknowledgement of Receipt.*)* (Code Civ. Proc., § 415.30.)
   (4) ☐ to an address outside California with return receipt requested. (Code Civ. Proc., § 415.40.)

   d. ☐ **by other means** *(specify means of service and authorizing code section):*

   ☐ Additional page describing service is attached.

6. The "Notice to the Person Served" (on the summons) was completed as follows:
   a. ☐ as an individual defendant.
   b. ☐ as the person sued under the fictitious name of *(specify):*
   c. ☐ as occupant.
   d. ☒ On behalf of *(specify):* ACCURATE BACKGROUND LLC, a California limited liability company under the following Code of Civil Procedure section:

☐ 416.10 (corporation)	☐ 415.95 (business organization, form unknown)
☐ 416.20 (defunct corporation)	☐ 416.60 (minor)
☐ 416.30 (joint stock company/association)	☐ 416.70 (ward or conservatee)
☒ 416.40 (association or partnership)	☐ 416.90 (authorized person)
☐ 416.50 (public entity)	☐ 415.46 (occupant)
	☐ other:

7. **Person who served papers**
   a. Name: Sarah Thompson
   b. Address: L.A. Process Servers, 1439 N. Highland Ave., #274, Los Angeles, CA 90028
   c. Telephone number: 323-508-1711
   d. **The fee** for service was: $60.00
   e. I am:
      (1) ☐ not a registered California process server.
      (2) ☐ exempt from registration under Business and Professions Code section 22350(b).
      (3) ☒ a registered California process server:
         (i) ☒ owner ☐ employee ☐ independent contractor.
         (ii) Registration No.: 6679
         (iii) County: Los Angeles

8. ☒ **I declare** under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

   or

9. ☐ **I am a California sheriff or marshal and** I certify that the foregoing is true and correct.

Date: 08/05/2026

Sarah Thompson
(NAME OF PERSON WHO SERVED PAPERS/SHERIFF OR MARSHAL)

(SIGNATURE)

EXHIBIT 10

MORGAN, LEWIS & BOCKIUS LLP
Andrew P. Frederick (SBN 284832)
1400 Page Mill Road
Palo Alto, CA 94304
Tel: +1.650.843.4000
Fax: +1.650.843.4001
Email: andrew.frederick@morganlewis.com

Attorney for Defendant
AMAZON.COM SERVICES LLC

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

vs.

AMAZON.COM SERVICES, LLC, a Delaware limited liability company; ACCURATE BACKGROUND LLC, a California liability company; and DOES 1-10, inclusive,

Defendants.

Case No. 26CV201554

NOTICE OF APPEARANCE ON BEHALF OF DEFENDANT AMAZON.COM SERVICES LLC

Complaint Filed: July 28, 2026

Trial Date: Not Yet Set

PLEASE TAKE NOTICE that attorney Andrew P. Frederick of Morgan, Lewis & Bockius LLP hereby enters his appearance as counsel of record on behalf of Defendant Amazon.com Services LLC in the above-captioned case. Copies of all briefs, motions, orders, correspondence, and other papers filed by or with the Court may be served on Andrew P. Frederick at the following address:

Andrew P. Frederick (SBN 284832)
MORGAN, LEWIS & BOCKIUS LLP
1400 Page Mill Road
Palo Alto, CA 94304
Tel: +1.650.843.7565
Fax: +1.650.843.4001
Email: andrew.frederick@morganlewis.com

Dated: August 24, 2026

MORGAN, LEWIS & BOCKIUS LLP

By */s/ Andrew P. Frederick*
Andrew P. Frederick

Attorney for Defendant
AMAZON.COM SERVICES LLC

PROOF OF SERVICE

I, Suga A. Ikeda, declare:

I am a citizen of the United States and employed in Santa Clara County, California. I am over the age of eighteen years and not a party to the within entitled action. My business address is 1400 Page Mill Road, Palo Alto, CA 94304. On August 24, 2026, I served a copy of the within document(s):

NOTICE OF APPEARANCE ON BEHALF OF DEFENDANT AMAZON.COM SERVICES LLC

☐ by transmitting via facsimile the document(s) listed above to the fax number(s) set forth below on this date before 5:00 p.m.

☒ by placing the document(s) listed above in a sealed envelope with postage thereon fully prepaid, the United States mail at Palo Alto, California addressed as set forth below.

☐ by placing the document(s) listed above in a sealed envelope and affixing a pre-paid air bill and causing the envelope to be delivered to an agent for delivery.

☐ by personally delivering the document(s) listed above to the person(s) at the address(es) set forth below.

☐ by transmitting via e-mail or electronic transmission the document(s) listed above to the person(s) at the e-mail address(es) set forth below.

Brendan Ngehsi Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204
Tel: (209) 801-4442
Email: bnn.cdl@gmail.com

Plaintiff, In Pro Per

Jasmine Stanzick
Seyfarth Shaw LLP
601 South Figueroa Street, Suite 3300
Los Angeles, CA 90017-5793

John Drury
Seyfarth Shaw LLP
233 S. Wacker Drive, Suite 8000
Chicago, Illinois 60606-6448

Attorneys for Defendant Accurate Background, LLC

I am readily familiar with the firm's practice of collection and processing correspondence for mailing. Under that practice it would be deposited with the U.S. Postal Service on that same day with postage thereon fully prepaid in the ordinary course of business. I am aware that on motion of the party served, service is presumed invalid if postal cancellation date or postage meter date is more than one day after date of deposit for mailing in affidavit.

Executed on August 24, 2026, at San Jose, California.

I declare under penalty of perjury under the laws of the State of California that the above is true and correct.

Suga A. Ikeda

Suga A. Ikeda

EXHIBIT 11

Jasmine J. Stanzick (SBN 354704)
jstanzick@seyfarth.com
SEYFARTH SHAW LLP
2029 Century Park East
Suite 3500
Los Angeles, California 90067-3021
Telephone: (310) 277-7200
Facsimile: (310) 201-5219

Attorneys for Defendant
ACCURATE BACKGROUND, LLC

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. AMAZON.COM SERVICES, LLC, a Delaware limited liability company; ACCURATE BACKGROUND LLC, a California liability company; and DOES 1-10, inclusive, Defendants.	Case No. _____ **DEFENDANT ACCURATE BACKGROUND, LLC'S CONSENT TO REMOVAL** (Removed from Alameda County Superior Court Case No. 26CV201554) Date action filed: July 28, 2026

Defendant ACCURATE BACKGROUND, LLC, by its attorneys and pursuant to 28 U.S.C. § 1446(b)(2)(A), hereby consents to the removal of this action from the Superior Court of the State of California, County of Alameda to the United States District Court for the Northern District of California, as set forth in the Notice of Removal filed by Defendant Amazon.com Services LLC.

SEYFARTH SHAW LLP

By: */s/ Jasmine J. Stanzick*
Jasmine J. Stanzick

Attorneys for Defendant
Accurate Background, LLC

Date: August 28, 2026